



POLICE DEPARTMENT

December 30, 2008

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jonathan King
Tax Registry No. 925546
83 Precinct
Disciplinary Case No. 82743/07

The above-named member of the Department appeared before me on April 11 and September 12, 2008, charged with the following:

1. Said Police Officer Jonathan King, assigned to the 83 Precinct, in or about a date in October 2005, in or about the Hope Gardens Youth Center, Brooklyn, New York, did wrongfully make discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, or sexual orientation, in that said Police Officer made statements to a New York City Housing Authority employee assigned to said Youth Center using vulgar and derogatory language regarding the sexual orientation of another Police Officer assigned to the 83 Precinct.

P.G. 203-10, Page 1, Paragraph 1 – PUBLIC CONTACT – PROHIBITED
CONDUCT

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL

2. Said Police Officer Jonathan King, assigned as indicated in Specification No. 1, at or about the time, date, and location indicated in Specification No. 1, did wrongfully engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer made statements to a New York City Housing Authority employee assigned to the Hope Gardens Youth Center in the presence of a twelve year old child using vulgar and derogatory language regarding the sexual orientation of another Police Officer assigned to the 83 Precinct.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED
CONDUCT

The Department was represented by David Green, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges.

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A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Anita Haines, Deputy Inspector John Bambury, and Sergeant Robert O'Hare as witnesses.

Anita Haines

For 22 years, Haines has been employed as the director of the New York City Housing Authority's (NYCHA) Hope Gardens Community Center ("the Center") in Bushwick, Brooklyn. As director, Haines is responsible for setting up programs for the children in the community. The Center is located within the confines of the 83 Precinct, and Haines maintains relationships with Department personnel assigned to that precinct. She explained that she regularly attends a Precinct Community Council meeting. When asked to describe her relationship with Deputy Inspector John Bambury, the 83 Precinct Commanding Officer, Haines replied, "I attend meetings, and you know, if the inspector needed to know some information or something like that. So I had, I guess you call it a personal relationship." In addition, Haines is on a first-name basis with many of the police officers that stop by the Center. She explained that members of the 83 Precinct regularly stop by the Center to get water, use its bathroom, or just say hello. Haines testified that she was friends with an officer named Gualberto (Bobby) Garcia, who worked in

the 83 Precinct in October 2005. Garcia used to stop by the Center and also used to work in the Center's evening program.

Haines testified that during a late afternoon or early evening in October 2005, the Respondent and his partner, Police Officer Sean McClaine, came to her office. Haines did not remember the exact date. The Respondent was in uniform. Haines had spoken with the Respondent prior to that day and did not have any type of bad relationship with him. McClaine, with whom Haines maintained a friendly relationship, has since been promoted to sergeant. At the time, Haines' assistant, Miguel Cruz, and her 12-year-old nephew, Aron Haines ("Aron"), were also present in the office. Aron currently lives in Upper Marlboro, Maryland. Haines stated that Aron was served with a subpoena in connection with this case, and she has spoken to him many times about returning to New York to testify at trial. According to Haines, Aron told her that the incident happened three years ago and he wanted to put it behind him.

Haines testified that the Respondent asked her if she knew that people called Garcia "big guns." Haines explained that this comment was a reference to Garcia's penis, and she believed that the Respondent used the word penis in their conversation. According to Haines, the Respondent also told her that Garcia was gay, that people called Garcia "she balls," and that he "fucked Officer Garcia in the ass in the muster room." Haines stated that Aron asked her if it was true that Garcia was gay. In addition, according to Haines, the Respondent told Aron, "[C]ome in the bathroom. . . . I want to show you what officers do to young boys in the bathroom." Haines stated that the Respondent then laughed about it. Haines testified that she laughed when the Respondent first started making these comments because "it was kind of funny," but she then told the Respondent that he should not be saying these things. According to Haines, she had never before had a similar conversation with a police officer. Haines' office door was open at the time.

When the conversation was over, the Respondent went to the bathroom. Aron also went to the bathroom, and Haines told him to be careful in the bathroom because of the comments that the Respondent had made. After the Respondent and McClaine left the Center, Haines told Aron not to tell anyone about the Respondent's statements. She explained that the 83 Precinct was receiving media attention at the time because some of its officers had gotten in trouble. Haines did not want to create any new problems for Bambury because he was a good person and was always there for the community. Haines stated that she did tell Garcia and Police Officer Kenny Dwyer about the Respondent's comments, but she did not at the time make a formal notification to the Department about the incident.

When asked if the Respondent's October 2005 statements soured her relationship with him, Haines replied, "Yes and no." She explained that she saw him a little differently and was a little leery of talking to him. In February or March 2006, the Respondent came to Haines' office and asked her for help in ordering jerseys for the precinct football team. The Respondent knew that Haines knew a vendor who could get shirts made quickly. Haines was agreeable to helping the Respondent, and the Respondent told Haines that in thanks for the help he would get her a bottle of Ketel One vodka.

Haines testified that in May 2006, she saw the Respondent in a Department vehicle in front of the Center and asked him, "Where the fuck is my bottle?" She explained that she asked the Respondent this question because "if you promise somebody something, you know, you should deliver." The Respondent just laughed and kept driving. The Respondent never gave Haines a bottle of vodka, and Haines decided that she would never again do a favor for the Respondent.

On June 20, 2006, Haines was in the 83 Precinct Station House for a community council meeting. Haines stated that while she was talking to Bambury after the meeting, she observed

the Respondent walk by with a smirk on his face. Haines and the Respondent did not say anything to each other. At that point, Haines told Bambury about the comments that the Respondent had made in her office the previous October. As a result of her conversation with Bambury, Aron was interviewed by the 83 Precinct's Integrity Control Officer, Lieutenant Schumann. Haines was present at the interview.

On cross-examination, Haines testified that she and Garcia were very close friends. While Garcia worked in the 83 Precinct, she would see him while he was both on and off duty. Haines and Garcia have been to each other's homes. Members of the 83 Precinct's youth team work at the Center. Haines initially stated that she has no influence over which officers are assigned to the youth team. She went on, however, to testify about a youth team sergeant who "didn't work out." She explained that the five officers on the youth team complained to her about a Sergeant Gattis. In addition, Haines felt that Gattis "was strictly by the book, that he needed to loosen his tie a little, and basically come and get down and dirty." Haines ultimately conveyed to Bambury her opinion of Gattis. As a result of the meeting, Gattis was taken off of the youth team. Haines testified that she never saw Gattis do anything inappropriate or illegal, and just believed that a youth sergeant should be more laid back. Haines stated that in addition to seeing Bambury at the community meetings, she visited him often in his office. A week never went by that she did not have a conversation with Bambury.

Haines testified that she knew the incident occurred in October 2005 because Halloween decorations were up in the Center. She stated that when she told Bambury about the incident she wanted the Respondent to be disciplined. She explained that she had formed the opinion that the Respondent should not be working in the community anymore. According to Haines, she is well enough respected in the community that if she "gather[ed] up enough people to come to the precinct and make some noise on the precinct," she could get somebody transferred out of the

precinct.

Haines testified that she thought the Respondent's October 2005 comments were inappropriate, and she was offended by them. Contradicting her direct examination testimony, Haines stated that she did not laugh at the comments. She did not think the comments were funny. She was worried about Aron having heard the comments. She did not think, however, that the Respondent's comments that day were serious. Instead, she thought it was a bad joke. Haines knew that Garcia is not gay, and she did not really believe that the Respondent had sex with Garcia in the muster room. Similarly, she would not have let Aron go to the bathroom with the Respondent if she had thought that the Respondent's comment about sexually abusing Aron in the bathroom was serious. Haines testified that she was joking when she warned Aron to be careful in the bathroom. Before June 2006, Haines did not take any steps to complain about the incident. She did not know how many times she saw Bambury between the day of the incident and the day she reported it, but it was possible that she saw him at least once or twice a week during that period. According to Haines, the fact that the Respondent reneged on his promise to get her a bottle of vodka was not really the reason she decided to tell Bambury about the incident. Haines stated that she was a little disappointed, but not angry, that the Respondent did not buy her the vodka. She was not certain whether or not she told Bambury about the Respondent's promise.

Haines testified that the Respondent and Dwyer approached her together about getting the team jerseys. Both officers did the talking. While it was probably Dwyer who did more of the talking, it was the Respondent who handed her the money and offered to get her a bottle of something. According to Haines, the Respondent then asked her what she drank. At that point, Haines told the Respondent to get her a bottle of vodka. According to Haines, it was the Respondent who mentioned the brand Ketel One. Haines knew that Ketel One was a top-shelf

vodka, but it was not something that she normally drank. Haines explained that she considered getting the jerseys as doing a favor for Dwyer, not the Respondent.

Haines reiterated that she was present during Schumann's interview with Aron. According to Haines, Aron was not present when Schumann interviewed her. Haines did not recall how many times she spoke with Aron about the incident. At one point, Aron told Haines that he did not hear a lot of what the Respondent said during the October 2005 incident. At that point, Haines told Aron what she heard the Respondent say.

On redirect examination, Haines testified that she did not tell Aron what to say in his interview with Schumann. According to Haines, the part of the incident that Aron probably remembered best on his own was the comment about the Respondent taking him in the bathroom to have sex with him. At one point after the incident, Aron told Haines that that comment had bothered him. Haines stated that in her mind the October 2005 incident was not related in any way to her getting the jerseys or the Respondent's offer to get her vodka. She further stated that the bottle of vodka had nothing to do with her decision to report the Respondent's misconduct. Haines testified that a reason she did not report the incident earlier was because she did not want to bring on any media attention. She was afraid that media attention would lead children in the community to make fun of Aron. Before she reported the incident, however, Haines felt that she was letting Aron down by not saying something.

On recross-examination, Haines testified that until she reported the incident she was somewhat racked with guilt for her failure to come forward.

Deputy Inspector John Bambury

Bambury, an 18-year member of the Department, is currently assigned to the Intelligence Division. Between December 2004 and June 2008, he served as Commanding Officer of the 83

Precinct. Bambury first met Haines in December 2004 or January 2005. He explained that Haines runs the Center and has done a lot of positive work in the community. In addition, Haines has provided the precinct with a lot of criminal intelligence based on things that she heard at the Center. While Bambury was assigned to the 83 Precinct, he generally saw Haines two to three times a month. At times, though, he spoke to her as often as two to four times a week. Every month, with the exception of July and August, Bambury ran a precinct community council meeting. To his recollection, Haines never missed one of these meetings.

Bambury testified that at a June 2006 community council meeting, he noticed that Haines seemed bothered by something and "really out of sorts." He explained that Haines did not speak at the meeting, which was unusual. When the meeting ended, Bambury asked Haines if she was all right. According to Bambury, Haines told him, "I had a problem with some of the cops. I don't want to talk about it." Bambury told Haines that he wanted to hear about the problem, and Haines proceeded to tell him about the comments that the Respondent had made. Because it was late at night and they were in a public setting, Bambury told Haines that he would have Schumann call her the next day to discuss the matter further. Bambury never spoke with Haines about why she neglected to come forward sooner. Bambury testified that when Schumann informed him of the full nature of Haines' allegations, he discussed the situation with his supervisor, Chief Marino. It was decided that the Internal Affairs Bureau (IAB) should be contacted, and the Respondent was reassigned to duties inside the station house. Bambury stated that while he considered Haines to be a valuable source of information, she did not in any way control his decisions regarding personnel changes and assignments.

On cross-examination, Bambury testified that it seemed during the June 2006 conversation that Haines was there to tell him something. According to Bambury, it took very little prodding to get Haines to open up to him about the October 2005 incident. When asked

about Haines' credibility, Bambury replied, "She is someone who I generally believe when she tells me something." When he referred the case to IAB, he deemed Haines to be a credible witness. In the June 2006 conversation, Haines alleged that the Respondent had made a comment about the size of Garcia's penis and also told Aron that "he fucked Bobby Garcia in the ass." Bambury could not recall if Haines told him that night about the Respondent telling Aron that he would show him in the bathroom "what cops do to little boys." Bambury did recall that Haines told him that night about the Respondent agreeing to give her a bottle of vodka in return for doing him a favor of ordering jerseys. In addition, Bambury testified that he distinctly recalled Haines saying that when she asked the Respondent for the vodka, the Respondent said, "Fuck you," and walked away. The June 2006 conversation was the only one that Bambury ever had with Haines about the incident. Bambury never asked Haines why she waited eight months to report the incident, why she helped the Respondent get jerseys if she was so offended by the comments that he had made, or why she was willing to accept a bottle of vodka from him. Haines never told Bambury that what prompted her to finally report the incident was that she saw the Respondent in the station house that day and he had a smirk on his face.

Bambury testified that he did not recall Haines ever telling him that she yelled to the Respondent as the Respondent was driving by in a Department vehicle, "Where is my fucking vodka?" When asked if he knew Haines to use that kind of language, Bambury responded, "I know Anita to speak appropriately in the setting that she is in. . . . If she said something like that in jest, it wouldn't shock me, but I don't know her to be someone dropping the F bomb on a regular basis."

Bambury testified that between October 2005 and June 2006, he saw Haines more than 20 times. Some of those times, according to Bambury, Haines would seem out of sorts or look like she had something on her mind. When Bambury would ask Haines what was bothering her,

Haines would tell him. During these exchanges, Haines never brought up the October 2005 incident. In addition to the complaint against the Respondent, Haines had also complained to Bambury about a Sergeant Ward and Sergeant Gattis. Bambury stated that Gattis' removal from the position of youth sergeant was not a result of Haines' complaint. He then stated that the removal of Ward and Gattis from their positions was not, in its entirety, based on what Haines had told him. According to Bambury, both sergeants had significant shortcomings as supervisors and leaders. Haines never told Bambury that she thought the Respondent should be removed from the community.

Bambury was not present during Schumann's interview with Aron. Schumann told Bambury that he found Aron to be credible. Based on conversation with Schumann, Bambury got the impression that the comment about showing Aron what is done to little boys was made by the Respondent while the Respondent and Aron were in the bathroom. Bambury continued that, in contrast to the other comments attributed to the Respondent, this comment was made outside of Haines' presence. Schumann did not tell Bambury that Aron did not hear all of the Respondent's comments and that Haines told Aron after the incident about what had been said. Neither Bambury nor Schumann ever interviewed the Respondent.

On redirect examination, Bambury testified that he never read or heard anything to indicate that there was a separate conversation in the bathroom between the Respondent and Aron. He reiterated, however, that to his recollection the comment about showing Aron what is done to little boys was made by the Respondent while in the bathroom with Aron. When asked why he found Haines to be credible, Bambury responded, "I just know her, and like to me, this isn't something she would come in and make up. . . . To me, knowing her, knowing her relationship with cops, with the precinct, to me, when she told me this, listen, I believe what she told me." Bambury continued, "To me, Anita is a buff. She loves cops. I think the cops liked

her. . . . I think she wants her nephew to be a cop. Anita had a great relationship with the cops.”

On recross-examination, Bambury testified that Haines did not like Ward and did not like the things that Gattis was doing with the Center. According to Bambury, in the June 2006 conversation, Haines told him about the jerseys and the vodka and the Respondent saying “Fuck you” before she started to tell him about the October 2005 incident. Bambury stated that during his conversation with Haines, Aron was standing three to five feet away. He further stated that Aron was probably within hearing distance, but he was not really paying attention to Aron at the beginning of the conversation.

Sergeant Robert O’Hare

O’Hare, a 13-year member of the Department, is currently assigned to the Brooklyn North Investigations Unit. In July 2006, he was assigned to investigate Haines’ allegation against the Respondent. As part of his investigation, he reviewed the interview that Schumann conducted with Aron (Department’s Exhibit 1 & 1a, interview tape and transcript, dated June 28, 2006).

In the interview, Aron stated that the October 2005 incident was the only time that he observed the Respondent at the Center. Aron told Schumann that the Respondent came to the Center with his partner. Aron could not remember who the Respondent’s partner was, and according to Aron, the partner was in the bathroom during the incident. Aron told Schumann that he was in Haines’ office when the Respondent came in, asked if they knew Garcia was gay, and told them that he had had sex with Garcia. According to Aron, the Respondent proceeded to state, “Come here little boy, I’m going to show you what officers, policemen do to little kids in the bathroom.” Aron told Schumann that he was kind of surprised by the Respondent’s statements. Aron went on to tell Schumann, “At first I didn’t understand, I wasn’t really paying attention to [the Respondent] when he said it to me, but now that I think about it it was kind of, kind of get me upset that he kind of said that to me, and he doesn’t even know me, why would he say that to me.” Aron stated that he did not discuss the incident with anyone until Haines brought up the subject

a few days before the interview. During that conversation, according to Aron, Haines told him that he was not paying attention during the incident and proceeded to tell him exactly what it was that the Respondent said.

On cross-examination, O'Hare testified that he never interviewed Aron himself, but he did interview Haines twice on the telephone. Although Schumann had previously interviewed Haines on tape, O'Hare's interviews with Haines were not recorded. During O'Hare's two interviews with Haines, Haines' accounts of the events did not deviate.

In January 2007, O'Hare interviewed McClaine. O'Hare explained that the Respondent and McClaine were working together on the day of the incident, and there was an understanding that McClaine was possibly with the Respondent at the time. McClaine told O'Hare in the interview that at some point he heard around the precinct that there had been an inappropriate occurrence between the Respondent and Haines. McClaine also told O'Hare that although he was in the Center with the Respondent at the time that the misconduct allegedly occurred, he had no direct knowledge that the Respondent did anything wrong and he did not even remember Aron being present. McClaine told O'Hare that he did not recall hearing the Respondent make comments about Garcia being gay, or "she balls," or anything else of that nature.

As part of his investigation, O'Hare also interviewed Garcia. Garcia told O'Hare in the interview that he never had sex on duty. Garcia also told O'Hare that he did not have a problem with the Respondent and joked around with him. O'Hare advised Garcia that he could bring the matter to the Civilian Complaint Review Board and the Office of Equal Employment Opportunity.

O'Hare reiterated that he reviewed the tape of Schumann's June 28, 2006, interview with Aron. Aron told Schumann that he was not really paying that much attention to the Respondent's comments. Aron explained to Schumann that he heard some of the comments, but

Haines had to subsequently advise him of some of the specific allegations. Aron further explained that he had not really thought about the incident until his aunt brought up the topic a couple of days before the interview. O'Hare did not know if Haines was present in the room during Aron's interview.

On redirect examination, O'Hare testified that in February 2007 he interviewed Cruz, who worked at the Center on the day of the incident. The interview took place over the telephone and was not recorded, but O'Hare did prepare a worksheet on the interview. According to O'Hare, he asked Cruz open-ended questions, and Cruz's responses corroborated Haines' allegation that the Respondent made statements of a sexual nature in front of both Haines and Aron. Cruz heard the Respondent tell Aron that the Respondent would show Aron in the bathroom what police officers do to little boys. Cruz also told O'Hare that the Respondent used the term "she balls" and commented about Garcia's homosexuality. O'Hare stated that there was not any substantial part of Haines' allegations that Cruz did not corroborate. He further stated that, according to Cruz, the Respondent and Haines joked with each other, and there was some laughing going on at the time of the incident. He testified that throughout the investigation, the statements provided by Haines were always consistent with each other. According to O'Hare, Haines neither embellished nor deviated.

On recross-examination, O'Hare testified that he never met Haines or Cruz in person. O'Hare got Cruz's telephone number from Haines. He called Cruz as soon as he got the number because he did not want to give Haines the opportunity to call Cruz first. Although Haines mentioned Cruz during her first interview with O'Hare, it was not until the second interview that O'Hare asked her for Cruz's number. The first interview was held on September 1, 2006, and the second interview was held on February 5, 2007. O'Hare did not recall asking Haines if she spoke to Cruz during the period between the two interviews. When asked how he knew that he

really spoke to Cruz, O'Hare responded, "The numbers were provided and the person I requested I spoke to." He conceded, though, that he had no idea who he was actually speaking to. Cruz told O'Hare on the telephone that nobody said anything to the Respondent during the incident about being unhappy with the way that the Respondent was speaking. Cruz also told O'Hare that Haines was often laughing with the Respondent.

Upon questioning by the Court, O'Hare testified that he interviewed Dwyer in January 2007. Dwyer told him in the interview that the Respondent went through Haines to get the jerseys. Dwyer also told O'Hare that he was not present during the transaction.

The Respondent's Case

The Respondent testified on his own behalf.

The Respondent

The Respondent, a nine-year member of the Department, is currently assigned to the 83 Precinct. He has never before been the subject of Department discipline and is on the current list to be promoted to sergeant. He is the organizer of the precinct football and softball teams. In addition, he received permission from Haines for precinct personnel to play basketball at the Center. The Respondent explained that he met Haines when he was first assigned to the 83 Precinct in early 2005. He played basketball at the Center before his tour at least once a week for a period of six to nine months. At no point during that period did he have any problems with Haines, and he described his relationship with Haines as friendly.

The Respondent testified that he spent a lot of time with Garcia, and he socialized with Garcia and Garcia's girlfriend while off duty. He has never had any problems with Garcia. The Respondent knew that Garcia and Haines were close friends. The Respondent stated that he routinely went to the Center while on duty to use the bathroom or just to say hello to Haines.

According to the Respondent, he never made any comments to Haines about Garcia's sexuality, called Garcia gay, or professed to having had sex with Garcia. The Respondent testified that he never had any conversation of a sexual nature in front of Haines or anybody else at the Center. He stated that he never told anybody something along the lines of, "Come to the bathroom and I'll show you what cops do to little boys." He had used the bathroom at the Center on numerous occasions, and guessed that he used the bathroom there in October 2005. He does not remember any 12-year-old boy coming into the bathroom with him at any point. According to the Respondent, he has never had a conversation with Aron or even been introduced to him. The Respondent testified that he would not know Aron if he saw him walking in the street. In October 2005, the Respondent was partners with McClaine.

The Respondent testified that at one point he and Dwyer asked Haines for help in getting jerseys for the precinct softball team. He explained that Haines had a connection with a jersey vendor because the Center had sports teams. In the Respondent's presence, Haines called the vendor and placed the order for the jerseys. The Respondent stated that at that point Haines told him something to the effect of, "For doing you this favor, King, you owe me a bottle of Ketel One." The Respondent testified that he had no idea at the time what Ketel One was, and he laughed in response to Haines' statement. The Respondent never got the bottle of vodka for Haines.

The Respondent testified that one day in June 2006 he was inside the station house working at the telephone switchboard when Haines approached him and asked, "King, where is my mother fucking bottle of Ketel One?" The Respondent stated that he again just laughed in response. According to the Respondent, he did not say anything like, "Fuck you." The Respondent did not recall Haines ever asking him for her "fucking bottle" while he was driving a Department vehicle.

A week or two after seeing Haines inside the station house, the Respondent was changed to the midnight tour and told that he would no longer be allowed to go out on patrol. The Respondent was the subject of a January 26, 2007, Official Department Interview. In the interview, he denied the misconduct alleged by Haines. He stated at trial that he was shocked by the allegations.

On cross-examination, the Respondent testified that he heard other police officers in the precinct refer to Garcia on a daily basis as “she balls,” but he could not remember which specific officers used the term. The Respondent observed Garcia laugh when he was called this. The Respondent stated that although he was aware that certain precinct personnel talked about Garcia’s “sexual preference,” he was not certain exactly who talked about it. According to the Respondent, the subject never came up in his presence. The Respondent never spoke with Garcia about the fact that people called him names and talked about his sexual orientation. The Respondent saw graffiti about Garcia on the wall of one of the station house bathrooms writing about Garcia. The writing said, “She balls was here.” Only uniformed members had access to this specific bathroom. The Respondent stated that he did not think the writing was funny. He never brought the writing to the attention of a supervisor.

The Respondent testified that he never observed Haines exhibit anger toward him. Although the Respondent had heard Haines use profanity before, they never exchanged any unkind words with each other. The Respondent testified that had Haines been angry with him, she would have let him know. The Respondent stated about Haines, “She is not ashamed of voicing her opinion of displeasure. . . . Whoever did something that Mrs. Haines didn’t like, she would let you know.” There are officers in the precinct who are on a first-name basis with Haines and visit her at home. The Respondent is not among those officers. The Respondent visited the Center 40 or 50 times. He never went to the Center while off duty for any other

reason than to play basketball. He was never assigned to the Center as part of his assigned duties. According to the Respondent, he was unaware that Haines had a nephew. Similarly, he did not know that youths arrested in the 83 Precinct sometimes gave the name Aron Haines in an attempt to get special treatment.

The Respondent reiterated that it was Haines' idea to get a bottle of alcohol in exchange for ordering the jerseys. The Respondent testified that he never agreed to give her a bottle. In his January 2007 Official Department Interview, however, the Respondent stated that when Haines asked him about a bottle, he told her that he was going to get one for her. The Respondent clarified at trial that he did not remember ever agreeing to get Haines a bottle, but his memory of the exchange with Haines was better at the time of his interview than it is today. The Respondent stated that he could not remember if he ever actually intended to get Haines a bottle. The Respondent testified that he does not recall seeing Haines since their June 2006 exchange in the 83 Precinct Station House, and they have not spoken with each other since that time. He stated that he does not remember ever having a conversation with Cruz.

It came out on redirect examination that the conversation in which the Respondent agreed to get Haines a bottle (the conversation that was mentioned in the Respondent's Official Department Interview) took place at the Center. The Respondent reiterated that he did not remember having that conversation with Haines.

Upon questioning by the Court, the Respondent testified that the center has separate men's and women's bathrooms, and that more than one person can use the men's bathroom at the same time. When people referred to Garcia as "she balls," his interpretation was that Garcia was transsexual. The Respondent reiterated that he was friends with Garcia. According to the Respondent, they did not joke around about Garcia's sexuality or sexual things in general.

FINDINGS AND ANALYSIS

The Respondent is accused of uttering vulgar comments to Anita Haines, the director of a NYCHA youth and community center. The conflicting testimony that bears on this part of the case is relatively uncomplicated. Specifically, Haines alleged that in October 2005, while the Respondent was at the Center, he told her that Police Officer Gualberto (Bobby) Garcia was known as “big guns” (meaning, Haines said, that Garcia had a large penis), and “she balls” (on which Haines did not elaborate). Haines alleged that the Respondent told her that Garcia was gay and that he “fucked Officer Garcia in the ass in the muster room.” Haines also claimed that the Respondent turned to her nephew, Aron Haines, and said, “[C]ome in the bathroom . . . I want to show you what officers do to young boys in the bathroom.” While Haines was the only witness that attested to these events, the Department also produced the hearsay accounts of Aron Haines (through a recorded in-person interview with Lieutenant Schumann) and Miguel Cruz, Haines’ assistant (through an unrecorded phone interview with Sergeant O’Hare). Both Aron and Cruz corroborated Haines’ claims that the Respondent made the statements in question.

The Respondent, while admitting that he went to the Center routinely, denied making the comments in question, or having any conversation of a sexual nature in front of Haines or anyone else there. Police Officer McClaine, who Haines said was the Respondent’s partner on the day in question, told O’Hare that “somehow through the station house he had heard talk of an inappropriate incident that had supposedly occurred,” but had “no direct knowledge” of it having occurred.

Assessing the testimony of each of these witnesses requires, in essence, a subjective analysis. Haines’ account of what the Respondent allegedly said was consistent from the day she made the allegations to Bambury (the Commanding Officer of the 83 Precinct) until trial. But there are problems with Haines’ testimony. The most glaring problem is that Haines failed to

report the Respondent's alleged misconduct to the Department until approximately eight months later. The comments, if made, were shocking, especially the Respondent's remarks that he had sex with Garcia in the precinct's muster room, and that he wanted to take Aron into the bathroom and show him what police officers do to little boys. Even if Haines thought this was a joke, the remarks were completely inappropriate. In fact, she let her nephew, Aron, go into the bathroom with the Respondent. Haines testified that she told Aron to be careful in the bathroom, so she must have given the Respondent's comments at least enough credence in her mind that she thought he might be serious. Yet, she did not report them. It is inconceivable to the Court that someone with Haines' connections to Bambury, the Commanding Officer of the Respondent's precinct, would have heard these comments and done nothing. Haines' explanation for why she did not come forward – that she did not want more media attention to come upon the precinct – is not credible. While she asserted that if she had wanted the Respondent removed from the precinct, all she had to do was “gather up some people and make a big thing out of this here and come and protest on the precinct steps,” she could have simply spoken to Bambury about it quietly. In fact, when Haines thought that Gattis, who was assigned to the Center as a youth sergeant, was not working out, she spoke to Bambury about it.

Even more troubling is how the events were revealed to Bambury. Haines testified that in February or March 2006, she helped the Respondent obtain precinct sports team jerseys. She claimed that in exchange for her help, the Respondent promised to get her a bottle of Ketel One vodka. The Respondent did not follow through, she said, and vulgarly dismissed her when she asked him about it. In June 2006, at a precinct community council meeting, she told Bambury about the Respondent's comments. Significantly, what she first mentioned to Bambury was not the Respondent's comments, but the vodka. It was only later in that conversation that Haines told Bambury about the sexual comments, which he referred to the ICO.

Thus, there are three basic problem areas with Haines' account. The first is that Haines allowed Aron to go into the bathroom with the Respondent after he supposedly made the "little boys" remark. It is not credible that anyone would have heard a member of this Department say, "[C]ome in the bathroom. . . . I want to show you what officers do to young boys in the bathroom," and then let her 12-year-old nephew walk into the bathroom with that member.

The second problem area is that Haines did not immediately report the sexually-related comments, and continued to have dealings with the Respondent during that time period, specifically by helping him obtain athletic-team jerseys. The third problem area is that Haines' main complaint to Bambury about the Respondent was not that he had made the comments, but that he failed to give her a bottle of vodka that was allegedly promised in exchange for her help. It is not credible that Haines, knowing of the repulsive and shocking comments the Respondent allegedly made, would choose to first complain not about them, but about the bottle of vodka.

The accounts of Aron Haines and Miguel Cruz do not add much to the Department's case. Although hearsay is admissible in this forum, see Matter of Ayala v. Ward, 170 A.D.2d 235 (1st Dept. 1991), there are significant reasons for caution. The most salient of these, with regard to Aron, is that he appears not to have recalled the incident except by Haines' prodding. He stated to the Department's investigator that Haines brought up the subject a few days prior to the interview, they discussed it, and "she just told me **exactly what happened 'cause** I wasn't paying attention to him what he said so (inaudible)."¹ It was clear to the investigator that Aron was not paying attention, as he next asked, "Having (transcript reads "Have you") heard from your aunt what was said, how do you feel about it?" Moreover, Haines, the main complainant, was not only sitting in on the interview, but at one point appears to have commented. When Aron said, "Um I asked her, um because she brung it up a few days ago about um what happened

¹ The transcript of Aron's interview (DX-1a) is uncorrected. When the tape (DX-1) is listened to, the words in bold are audible (the transcript marks this portion as inaudible).

and we was talking about it . . . we was talking about it about exactly what happened so,” a third voice, away from a microphone – not Aron’s or the investigator’s – says, “There’s nothing else,” and Aron repeats, “there’s nothing else.” Therefore, Aron’s interview does not carry weight.

The account of Cruz is even less reliable. O’Hare only spoke to Cruz over the telephone after Haines gave O’Hare Cruz’s number. The interview was not recorded. Rather, O’Hare testified to what Cruz told him. First, the fact that Cruz did not deviate from Haines in reporting the Respondent’s remarks is a consistency that, in the context of this case, raises the suspicion that Haines spoke to Cruz beforehand about what to tell O’Hare. The interview took place in February 2007, approximately 16 months after the incidents. It is difficult to believe that Cruz could have remembered a momentary encounter exactly as Haines did. In other words, their accounts were too consistent. Second, because the interview was not recorded in any way, it is impossible to examine what Cruz actually told O’Hare.

Finally, because neither Cruz nor Aron appeared at trial, neither could be examined by the Respondent’s counsel or by the Court.

Not surprisingly, the Respondent’s account of what occurred, or did not occur, in October 2005 at the Center differs from that of Haines, Aron, or Cruz. There do not appear to be any inconsistencies within his testimony. Nor are there any apparent inconsistencies with prior testimony or statements he has made on the subject, except for whether he agreed, at some point, to obtain a bottle of Ketel One in exchange for Haines’ assistance in getting softball jerseys.

Ultimately in a situation like this the question comes down to whether the Department has proven its case to the standard required in this forum. With regard to these specifications, that means Haines’ assertions have to have a greater value than the Respondent’s denial. There is not sufficient, reliable or independent evidence to support Haines’ version and indeed there are some genuine concerns about her credibility.

Other than his interest in the outcome of the case there is no apparent reason to disbelieve the Respondent.

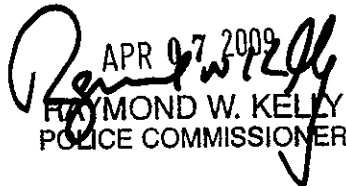
Consequently the Department failed to meet its burden to prove, by a preponderance of the credible evidence, that in October 2005, the Respondent made vulgar and derogatory remarks about the sexual orientation of Garcia, or spoke in Aron's presence in such a manner. Thus, the Respondent is found Not Guilty.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials

APPROVED



APR 07 2009
RAYMOND W. KELLY
POLICE COMMISSIONER